

§473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.)

A review of the proof of service of the summons for Defendant F.C. Landscape indicated that service was done via substitute service of the person authorized to accept service, Francisco Corona. The documents were served on January 29, 2026 on a “Fernando Mejia, management” at 43216 Madison Street, Indio, CA 92201 at 11:36 a.m. Service was done by Registered Process Server Daniel Rolfe, and that the documents were mailed by Kendall Holmes to the same Indio address on 2.02.26. Service would be deemed completed 10 days later, on February 12, 2026. Evidence code §647 establishes a rebuttable presumption for a registered process server’s return. The request for entry of default was submitted to the court on March 18, 2026.

In his initial declaration dated May 22, 2026, Francisco Corona acknowledges that he is the Agent for service of process for Defendant F.C. Landscape as well as the CEO and CFO. Mr. Corona stated that the Madison Street address in Indio is the principal address of F.C. Landscape. Mr. Corona said that he was out of the country in Mexico between November 3, 2025 and February 7, 2026 and upon his arrival he did not return to work due to multiple deaths in the family, returning to the office sometime around the second week of March, 2026. While he was out of the country, Mr. Corona indicated no one else was checking the mail for F.C. Landscape. Mr. Corona did not state if anyone was checking mail after his return from Mexico in February.

Mr. Corona’s declaration fails to show mistake, inadvertence, surprise or excusable neglect. Failing to establish someone to check mail for a corporation for a period of over three months does not qualify as excusable. Adding to that failure is the additional month of failing to return to the office once back from Mexico. This court acknowledges that the several deaths in Mr. Corona’s wife’s family in a short period of time is an unfortunate and unforeseen circumstance, but failing to stop to check mail or go by the office, after having been away from 3 months, does not warrant setting aside of the default either under CCP 473.5 or 473(b), not to mention the omission of having someone to check the mail for the business during that 3 month timeframe. The supplemental declaration dated July 30, 2026 that Mr. Corona does not know a Fernando Mejia is insufficient to overcome the presumption afforded under E.C. 647. Additionally, Mr. Corona’s declaration fails to adequately address why he did not notice the mailed subpoena when he returned to the office around the second week of March, if the default was entered on March 18<sup>th</sup>.

Defendant F.C. Landscape’s Motion to Set Aside Default DENIED.

Case Management Conference confirmed for September 3, 2026.

| CASE #      | CASE NAME                                                                                  | HEARING NAME                                                             |
|-------------|--------------------------------------------------------------------------------------------|--------------------------------------------------------------------------|
| CVPS2603417 | COUNTY OF RIVERSIDE<br>VS THE HEIRS,<br>DEVISEES, AND<br>SUCCESSORS OF<br>RALPH W. PARRISH | MOTION FOR ORDER FOR<br>PREJUDGMENT POSSESSION BY<br>COUNTY OF RIVERSIDE |

**Tentative Ruling:** No opposition filed.

The court finds that Plaintiff is entitled to take the property by eminent domain, and that Plaintiff has deposited an amount that satisfies CCP 1255.010.

Plaintiff's Motion for Order for Prejudgment Possession is GRANTED.

The court shall sign the proposed order submitted on May 26, 2026 with the motion.

Case Management Conference confirmed for November 18, 2026.